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Case Number: 25SMCV02595 Hearing Date: July 31, 2026 Dept: N

TENTATIVE RULING

Defendant Robert Hazany, D.D.S.'s Demurrer to Plaintiff's First Amended Complaint is OVERRULED.

Defendant Robert Hazany, D.D.S.'s Motion to Strike Portions of Plaintiff's First Amended Complaint is GRANTED without leave to amend as to Plaintiff Erik Wolves' claim and prayer for punitive damages.

Defendant Robert Hazany, D.D.S. shall file and serve an answer to Plaintiff Erik Wolves' First Amended Complaint within ten (10) days of entry of this order. (Cal. Rules of Court, rule 3.1320(j).)

Defendant Robert Hazany, D.D.S. to give notice.

REASONING

Defendant Robert Hazany, D.D.S. ("Defendant") demurs to the claims in Plaintiff Erik Wolves ("Plaintiff")'s First Amended Complaint ("FAC") on the ground that the claims are barred by res judicata. Defendant argues that the FAC focuses on allegations of dental malpractice, which is the same conduct at issue in Los Angeles Superior Court Case No. 24BHSC01186 (Wolvez v. West Los Angeles Dentistry), which was already litigated and adjudicated. Defendant also argues that it is unclear if Plaintiff is alleging any other cause of action besides professional negligence and dental malpractice. Defendant also moves to strike Plaintiff's claims and prayer for punitive damages.

Request for Judicial Notice

Defendant requests judicial notice of Plaintiff's FAC in this action and three court records from Los Angeles Superior Court Case No. 24BHSC01186 (Wolvez v. West Los Angeles Dentistry). Defendant's request is GRANTED pursuant to Evidence Code section 452, subdivision (d). Defendant also requests judicial notice of the printout from the Secretary of State of California for Defendant's corporation and a printout from the Dental Board of California regarding Defendant listing his fictitious business names. Defendant's request is GRANTED pursuant to Evidence Code section 452, subdivision (h).

Legal Standard

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967), but the Court does not "assume the truth of contentions, deductions, or conclusions of fact or law" (Moore v. Regents of University of California (1990) 51 Cal.3d 120, 125).

Further, the court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not "sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment"]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 ["A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment."]; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 ["When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend."].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

Demurrer

Defendant argues that Plaintiff previously filed a complaint against Defendant in Los Angeles Superior Court Case No. 24BHSC01186 (Wolvez v. West Los Angeles Dentistry), the case went to trial, and the Court entered judgment against Plaintiff and in favor of Defendant.

The doctrine of res judicata is described as follows:

Res judicata, or claim preclusion, prevents relitigation of the same cause of action in a second suit between the same parties or parties in privity with them. Under the doctrine of res judicata, a judgment for the defendant serves as a bar to further litigation of the same cause of action. To operate as a bar, a judgment must be final, on the same claim or cause of action, between the same parties, and must be an adjudication on the merits.

(Hi-Desert Medical Center v. Douglas (2015) 239 Cal.App.4th 717, 731, ellipses, citations, brackets, and quotation marks omitted.)

Indeed, Case No. 24BHSC01186 was brought by the same Plaintiff, albeit with a slight spelling difference, against West Los Angeles Dentistry. The action was dismissed without prejudice on August 6, 2024 when Plaintiff failed to appear for a non-jury trial. Defendant was identified in that action as West Los Angeles Dentistry's agent for service of process on page 2 of the complaint. Notably, the Court cannot conclude that that case has a final judgment, as no judgment was entered, and there was no adjudication on the merits.

Confusingly, Defendant also provides exhibits showing entry of judgment in a different case, Los Angeles Superior Court Case No. 24BHSC01698 (Wolvez v. West Los Angeles Dentistry), a case between Plaintiff and "Robert Hazany DDS A Pro Corp," where a non-jury trial occurred, the Court entered judgment in that action on October 16, 2024 after finding that the defendant did not owe Plaintiff any money on his claim, and the evidence did not support a claim for dental malpractice or breach of duty of care in the dental industry. (Dem., Bridwell Decl. ¶ 4, Ex. C.) While Defendant has not requested judicial

notice of that action, the Court opts to take judicial notice of that action and the court records in that case on its own motion pursuant to Evidence Code section 452, subdivision (d). Defendant also provides evidence here that Defendant is the Chief Executive Officer, Chief Financial Officer, Secretary, and Director of Robert Hazany, D.D.S., a Professional Corporation (Dem., Bridwell Decl. ¶ 5, Ex. D), and Defendant operates with a fictitious business name of West Los Angeles Dentistry (Dem., Bridwell Decl. ¶ 6, Ex. E). However, Defendant has not provided evidence that he is the same party or in privity with Robert Hazany DDS A Pro Corp. The evidence that Defendant is the Chief Executive Officer, Chief Financial Officer, Secretary, and Director of Robert Hazany, D.D.S., a Professional Corporation does not itself show that the two parties are in privity, and Defendant has made no argument as to why the Court should conclude that they are in privity with one another. It is not the Court's responsibility to determine if two parties are in privity, particularly in the context of a demurrer. Thus, the Court again cannot conclude that this action is barred by res judicata.

Defendant makes an alternative argument that Plaintiff's FAC is ambiguous, but he provides no specific argument to this effect. (See Dem., p. 7, ll. 13-15.) Further, the FAC states that is one claim for negligence (Compl., p. 1, l. 12), so while the opposition mentions breach of contract and misrepresentation, the Court proceeds as if Plaintiff is alleging one claim for negligence, i.e., medical malpractice. Thus, given there are no other bases for demurrer, Defendant Robert Hazany, D.D.S.'s Demurrer to Plaintiff's First Amended Complaint is **OVERRULED**.

Motion to Strike

Defendant moves to strike Plaintiff's claims for punitive damages against him on the ground that Plaintiff has failed to comply with Code of Civil Procedure section 425.13, and Plaintiff's claims are insufficient to support a claim for punitive damages.

Code of Civil Procedure section 425.13, subdivision (a), provides "[i]n any action for damages arising out of the professional negligence of a health care provider, no claim for punitive damages shall be included in a complaint or other pleading unless the court enters an order allowing an amended pleading that includes a claim for punitive damages to be filed." Such a claim is only allowed after the filing "a motion by the party seeking the amended pleading and on the basis of the supporting and opposing affidavits presented that the plaintiff has established that there is a substantial probability that the plaintiff will prevail on the claim pursuant to Section 3294 of the Civil Code." (Ibid.)

Plaintiff failed to seek leave to allege a claim for punitive damages against Defendant, and the allegations of the FAC do not make clear that punitive damages are warranted here. Punitive damages may be recovered upon a proper showing of malice, fraud, or oppression. (Civ. Code, § 3294, subd. (a).) "Malice" is defined as conduct intended to cause injury to a person or despicable conduct carried on with a willful and conscious disregard for the rights or safety of others. (Turman v. Turning Point of Cent. Cal., Inc. (2010) 191 Cal.App.4th 53, 63.) "Oppression" means despicable conduct subjecting a person to cruel and unjust hardship, in conscious disregard of the person's rights. (Ibid.) "Fraud" is an intentional misrepresentation, deceit, or concealment of a material fact known by defendant, with intent to deprive a person of property, rights or otherwise cause injury. (Ibid.) Plaintiff has alleged only the elements of dental malpractice with his request for punitive damages (see FAC, p. 8, ll. 11-16); there are no allegations of malice, oppression, or fraud, other than conclusory statements that Defendant falsified something (FAC, p. 2) and misrepresented his qualifications or experience (FAC, p. 3). This does not provide a basis for punitive damages.

Accordingly, Defendant Robert Hazany, D.D.S.'s Motion to Strike Portions of Plaintiff's First Amended Complaint is **GRANTED** without leave to amend as to Plaintiff Erik Wolves' claim and prayer for punitive damages. Defendant Robert Hazany, D.D.S. shall file and serve an answer to Plaintiff Erik Wolves' First Amended Complaint within ten (10) days of entry of this order. (Cal. Rules of Court, rule 3.1320(j).)